TATA MOTORS LIMITED

CV PUN ERC Direct Mat Tata Motors Ltd. Pune PIMPRI 411018

TML CIN : L28920MH1945PLC004520

TML GSTIN NO:27AAACT2727Q1ZW

PURCHASE ORDER

Vendor GSTIN NO:27AALCB3221A1Z9

TO : M/S **SUPPLIER CODE**: B73160
BETHEL AUTOMOTIVE SAFETY SYSTEMS
(INDIA) PRIVATE LIMITED
4-A,4TH FLOOR,898 NOTAN PLAZATURNER ROAD,BANDRA (W)

MUMBAI
Maharashtra,India, PIN - 400050

P.O. NO : 2520389066 PAGE: 1 / 3
P.O. DT : 29.05.2024 - 31.12.9999
AMENDMENT NO : 1
AMENDMENT DT : 04.07.2024
AGENCY : P.Org : P107-ERC Pur Org
BUYER : P.Group : I14-ERC Pur Grp 4
P.O. CATEGORY : PLPO - OT SA CVBU PUNE(PLPO

SALE OF GOODS MENTIONED IN THE P.O. TO SPARE MARKET IS STRICTLY PROHIBITED.

Quotation Ref and Date : B008445/
Your Ref : 30-07-2024
Our Ref : 000000921540
Vendor Quality Status : -
Payment Terms : AP02-Payment on 30 days from GR based on acceptance.
Incoterms : FH-Free house
Terms And Conditions : Please refer Last Page.

Item No : 10
Item Category : Standard
Material : 547642300104
Material Desc : CALIPER ASSY,REAR-RH
Drawing Doc. No : 548142300401
Drg. Rev. Level :
Container Type :
Item Amend Date : 29.05.2024
Taxes / Desc : VG / CGST+SGST/UGST creditable
Gross Price-Indirect : 30,000.00 INR 1 EA

Storage Loc : ER01 **Plant :** 1004
PO.Qty & Unit : 10 EA
Net Pr/Unit : INR 30,000.00 / 1 EA
Price Eff . Dt : 29.05.2024
IGST/Cess : 0.00 % / 0.00 %
CGST/SGST/UGST : 14.00 % / 14.00 % / 0.00 %
Item Value : INR 300,000.00
SAC :

PDI & TC TO ACCOMPANY THE CONSIGNMENT
DEG REV NR;1

PO Value : INR 300,000.00

1. Please ensure that product manufactured by you and the manufacturing process followed meet safety legal and environmental requirement, as applicable.

Supplier : B73160

For TATA MOTORS LTD.

This is computer generated PO, doesn't require signature.

TERMS AND CONDITIONS OF THE PURCHASE

GENERAL

1. No increase in prices shall be permitted during the period of the contract.
2. If the purchase order is not accepted by acknowledgment within ten days from the date of receipt by the supplier we shall be at liberty to cancel the same without incurring any liability whatsoever.

3. The GST rate mentioned in the PO is only indicative and as prevailing on the date of issue of PO. Charging the correct GST against supply of goods and/or services is the sole responsibility of the Suppliers. As and when the GST rates are revised by the Govt., it is responsibility of the Supplier to contact Tata Motors Ltd. and get the GST rate revised in the PO. Tata Motors Ltd. shall not be held responsible/ accountable, in any manner whatsoever, for incorrect levy of GST by Suppliers for supply of goods and/or services to Tata Motors Ltd.

BILLS AND INVOICES

4.. For E-Invoicing, IRN is mandatory for supplier of Goods and Services whose aggregate turnover at PAN level exceed the prescribed limit, as notified under GST Law. TML reserve its rights to recover any GST amount. Interest, Penalty, any or all in case any default by Vendors / Dealers arising out of non-compliance in this context.
5. The Bills and invoices of Materials shall be made out and sent in duplicate (Original for Buyer and Duplicate for Transporter) clearly indicating purchase order number, company name & address, store location, part details with quantity, value, date and description of the consignment and shall be sent along with the Transporter to the Manager (Central Receipt Documentation Office [CRDO]) of respective Plant of Tata Motors Limited. In case of service category bills, the Bills/ invoices shall be made out and sent in duplicate (Original and Copy) directly to the concerned person availing the services from respective TML location.
6. Each Consignment shall relate to one purchase order only.

PAYMENTS

7. Normally within 30 days on satisfactory receipt of goods at site in the event of any dispute as to dimensions, weight, quality, finish, colour, design or heading, the said period shall not be binding.
8. For clearance of outstanding bills a statement showing bills outstanding with our Goods Receipt Document reference shall be sent to Manager (Tata Motors Limited Business Services Limited), through mail box vendorqueries.finance@tatamotors.com indicating the purchase order number, date and description of Purchase Department..

PACKING AND DESPATCH

9. All railway receipt/goods consignments notes/delivery challans shall be made out in the name of Tata Motors Limited and not in personal names or to Self except from the negotiation of the documents through bank. Any expenses incurred for taking delivery of the consignment dispatched in a manner otherwise than stipulated above will be recovered from the supplier.
10. All packages shall be boldly and clearly marked on the outside of the package with the purchase order number and date.
11. No additional changes will be allowed for packing, forwarding and transport unless so stipulated, it being distinctly understood that the prices shall be FOR buying location (Pune,Jamshedpur,Lucknow,Mumbai ,Sanand,Dharwad ,Pantnagar)
12. Damages to any goods/materials for want or lack of proper packing without ensuring the protection to goods will be at the risk of the suppliers.
13. Goods despatch by VPP or documents presented through bank against cash will not be accepted unless so agreed upon in writing previously.
14. The company shall be under no obligation to accept materials received by the company in excess of the quantity ordered and shall remain the company's premises at the suppliers entire risk.
15. Materials/goods must be supplied/despatched within the time subject to the condition specified in the order. The time for and date of delivery stipulated in the purchase order shall be deemed to be of the essence of the contract and delivery shall be completed not later than the date specified matter of the order or any consignment or part thereof within the period prescribed for such delivery, the company shall be entitled to purchase elsewhere without notice to the supplier on account and at the risk of the supplier the materials/goods not delivered or others of similar description (where others exactly complying with the particulars are not in the opinion of the company which shall be final, readily procurable) without cancelling the contract in respect of the consignment not yet due for delivery or to cancel the contract in its entirely. In either event, the supplier shall be liable for any loss which the company may sustain on that account, but the purchaser shall not be entitled to any gains on re-purchases made against default.

INSPECTION AND REJECTION

16. If the company finds that materials/goods supplied are not of the contracted quality or not according to the specifications required by the company or are received in damaged or broken condition or otherwise not satisfactory owing to any reason of which the company shall be the sole judge, the company will be entitled to reject the material at any stage and cancel the order/contract and buy its requirements in the open market at the risk and cost of the supplier and recover the loss, if any, occasioned in such risk purchase, from the supplier.
17. Tata Motors Limited or its representative has the right to inspect/verify the product/ process at your end. This verification, however, will not absolve you of the responsibility to supply acceptable product nor shall it preclude subsequent rejection.
18. Local suppliers shall remove the rejected material within two weeks. In case the supplier fails to collect the rejected materials within this time, the company will scrap the materials after the period is over. The company will have no liability whatsoever including its loss in respect of such scrapped materials. In case of outside suppliers, the rejected materials shall be promptly returned to them at their cost in all respects. So long as the rejected materials lie at our works for any reason, they shall be entirely at Suppliers risk and responsibility.
19. If material is not within the specifications and due to urgency material is rectified as covered by our inspection report, extra inspection and rectification charges incurred by Tata Motors Limited shall be recovered from the suppliers.
20. Line rejection or stock rejection covered by Tata Motors Limited scrap card and inspection report, due to material defect, shall be recovered from supplier. The defective castings and forgings will not be sent to the supplier, however credit towards the scrap realisation will be given to the supplier.

GUARANTEE

21. The supplier shall replace free of charge any part or parts found to be defective in quality finish, colour, design, material or workmanship or in the event of the failure or indication of failure within 12 months the equipments is, put into use.

DRAWINGS AND SKETCHES

22. Drawings and sketches, if any, furnished by the company to the supplier shall always remain the property of the company and shall not be used for any either purpose except for which they are provided. They shall not be detected, altered, copied or allowed to be copied in any manner whatsoever except with the prior approval of the company Supplier shall be responsible for their safe custody during the period they are in possession and shall ensure their prompt return to the company when no longer required.

TRADE MARKS

23. Trade Mark of which the company is either the registered proprietor or registered user shall, if so approved by the company, be used only on the goods to be supplied to the company and in the manner provided. Their use colorable or otherwise, in any manner in relation to the products of the supplier, not for use by the company, shall be strictly prohibited and in the case of default shall render the supplier liable to legal action.

FORCE MAJEURE

24. The company shall not be liable for non-performance or delays in or failure in performance hereon if and to the extent caused by occurances beyond their control including but not limited to, acts of God, decrees or restraints of Government, strikes or other labour disturbance, war sabotage, change of law, refusal on the part of any government, government agencies bank or other competent authority to grant any necessary permit licence or sanction or deciding to revoke or quality and such permit or in the event of any other supervening clause rendering performance or further performance of any of the obligations impossible in

accordance with the most liberal interpretation of the doctrine of frustration of contracts.

SAVINGS

25. The company reserves the right to add or amend or to alter or modify of render inoperative any one or more of these terms by prescribing special conditions in any particular purchase order and to the extent such addition or modification is made the altered and additional clauses shall have effect, the company's decision shall be final in disputes arising out of the purchase orders. Money due to the company either as damages or under any other order may be adjusted, when setting payment against this order.

26. If any sum of money is recoverable from the payable by the supplier the company shall be entitled to recover such sum from any sum due to them or which at any time thereafter may become due to the supplier under this or any other purchase order. Should the sum be not sufficient to cover the full amount recoverable, the supplier shall pay to the ION

27. All disputes arising out of this purchase order shall be referred, except as to matters in respect whereof the decision is specifically provided for by this condition, to the award of two arbitrators one to be nominated by each party to the dispute, Subject to the said provisions for arbitration. Courts in buying location of the Purchase Order in dispute (Pune,Jamshedpur,Lucknow,Mumbai,Sanand,Dharwad,
Pantnagar) shall have exclusively jurisdiction in the matter.

FALL CAUSE

28. The prices charged for the stores supplied under the contract the contractor shall in no event exceed the lowest price at which the contractor sells the stores of identical description to any other person during the period of the contract.If at any time during the said period the contractor reduces the sales price of such stores or sells such stores to any other persons at a price lower than the price chargeable under the contract, he shall forthwith notify such reduction or sale to the Director and General Manager and the price payable under the contract for the stores supplied after the date of coming into force such reduction or sale shall stand correspondingly reduced. The above stipulation will not, however,
apply to
a) Exports by the contracts
b) Sales of goods as original equipment at prices lower than the prices charged for normal replacement.

Taxes

29. To ensure complaince under GST law. In case of non-complaince impacting any financial loss to TML, TML can take action of recovery for such loss.